

11. 23CV02903 Salvagno, Rachelle v. Tri Counties Bank

EVENT: Defendant's Renewed Motion to Compel Responses to Written Discovery and Monetary Sanctions

Defendants Renewed Motion to Compel Responses to Written Discovery and Monetary Sanctions is GRANTED. Plaintiff is ordered to provide verified responses without objection within 10 days' notice of this order.

Although the Court is mindful of the explanations from Plaintiff concerning the delays in responding, ultimately those explanations do not excuse a delay of this length, considering the requests were served in December 2025. As a result, Plaintiff is sanctioned in the amount of \$2,705.00, payable within 30 days.

Defendant shall prepare a form of order consistent with this ruling within two weeks.

12. 25CV01086 Robinson, Lorilee Meranda v. Transdev Services, Inc.

EVENT: Defendant's Motion for an Order Deeming Matters Admitted and for Monetary Sanctions

Defendant's Motion for an Order Deeming Matters Admitted and for Monetary Sanctions is GRANTED. It is well settled that unverified responses are tantamount to no responses at all. (*Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1348) Plaintiff (but not Plaintiff's counsel) is sanctioned in the amount of \$1,428.00, payable within 30 days. The Court will sign the proposed order with this modification.

13. 25CV03376 Li, Yi v. AMCAL Chico LLC et al.

EVENT: Plaintiff's Motion for Leave to File a Second Amended Complaint

Plaintiff's Motion for Leave to File a Second Amended Complaint is DENIED. CCP 1005 requires a minimum of 16 court days' notice. An additional 2 court days are required when service is effectuated electronically as occurred here. (CCP 1010.6(a)(3)(B))

The proof of service indicates the motion was served on May 19. Factoring in the Memorial Day Court Holiday, May 19 is 15 court days before the hearing.

14. 25CV04067 Wells Fargo Bank, N.A. v. Sifton, Adrian

EVENT: Plaintiff's Motion to Deem Requests for Admissions Admitted

Plaintiff's Motion to Deem Requests for Admissions Admitted is GRANTED. The Court will sign the proposed order.

15. 25CV05091 De Baun, Roger Dale v. Fulton, Lauren Lynn et al.

EVENT: City of Oroville's Demurrer to Plaintiff's Complaint

Per CCP 472 and the First Amended Complaint (FAC) filed on May 29, the demurrer is moot. The Court notes that the FAC was filed one day late.

16. 26CV01040 Turri, Daniel Eugene James v. Volkswagen Group of America Inc.

EVENT: Defendant Volkswagen Group of America, Inc.'s Demurrer to Plaintiff's Complaint

First and Fourth Causes of Action

As Defendant noted, these causes of action are essentially duplicative as they seek remedies for failure to repurchase or replace after a reasonable number of attempts. Regarding Defendant's argument that the Complaint fails to sufficiently allege the vehicle was new for purposes of *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Court disagrees. The Court finds paragraph 10 sufficiently alleges a new vehicle as that term is defined in *Rodriguez*.

Defendant contends that pursuant to Civ. Code 1791.2 the complaint must identify the authorized retail entity that sold Plaintiff the vehicle. Nowhere in section 1791.2 does it require Plaintiff to identify the identity of the retailer at the pleading stage. From a practical perspective, if the vehicle was sold from an unauthorized retailer the chances that it is actually a new vehicle pursuant to *Rodriguez* is probably slim, but there is no authority for sustaining a demurrer on this ground. Section 1971.2 contemplates a warranty from a manufacturer or retailer, and paragraph 10 adequately alleges Plaintiff received a warranty from the manufacturer.